

****December 19, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in November 2024, an investigation into the operator English Home SRL and found a violation of the provisions of Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679, in relation to Article 21 of the same regulation and Article 25 of Regulation (EU) 2016/679.

As such, the operator was sanctioned administratively:

- with a fine of 4,976.5 lei (equivalent to 1,000 EURO) for the violation of Article 12 paragraphs (3) and (4), in relation to Article 21 of Regulation (EU) 2016/679;
- with a fine of 19,906 lei (equivalent to 4,000 EURO) for the violation of Article 25 of Regulation (EU) 2016/679.

The investigation was initiated following a complaint submitted by a data subject who reported receiving unsolicited commercial messages from the operator on their phone number. Although the individual requested to unsubscribe, in writing, via email, based on Article 21 of Regulation (EU) 2016/679, including by accessing a link provided for data subjects, the operator continued to send them new commercial messages.

During the investigation, it was found that the operator did not respond to the complainant's request to exercise their right to object regarding the processing of their email address and phone number for direct marketing purposes. Furthermore, it was established that the operator did not respond to the complainant's request within the legal deadlines.

As such, a violation of the provisions of Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679 was found, in relation to the provisions of Article 21 of the same European regulation.

Additionally, during the course of the investigation, it was found that the operator English Home SRL did not implement appropriate technical and organizational measures to ensure the respect of the rights of data subjects, in particular, the right to object regulated by Article 21 paragraphs (2), (3), (5) of Regulation (EU) 2016/679, thus violating the provisions of Article 25 of Regulation (EU) 2016/679.

Moreover, the following corrective measures were ordered for the operator:

- to effectively respond to the objection request regarding the processing of the complainant's data for direct marketing purposes and to provide a written response to their request;
- to ensure compliance with Regulation (EU) 2016/679 in the operations of personal data processing, by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is able to analyze, correctly resolve, and respond to all requests through which data subjects exercise their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR;
- to ensure the proper and continuous functioning of the "unsubscribe" procedures from receiving promotional messages via phone/SMS or email, respectively, for the withdrawal of consent for data processing for direct marketing purposes;
- to take measures to facilitate the receipt of requests for exercising rights and to provide appropriate information regarding these modalities, including on their own website.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****